

25NWLC36722 25NWLC36722

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-31

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Case Number: 25NWLC36722 Hearing Date: July 31, 2026 Dept: Y

25NWLC36722: BANK OF AMERICA, N.A. vs LISSET MARTINEZ OCAMPO

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Lisset Martinez ("Defendant"). It is unclear whether Defendant's Motion to Vacate Judgment ("Motion") has been served on Plaintiff Bank of America, N.A. ("Plaintiff"). Defendant did not file a Proof of Service of the Motion on Plaintiff and no opposition has been filed by Plaintiff.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California."

Since it is unclear whether proper notice of the motion has been given, the Court continues the hearing on the motion to August 28, 2026 at 10:30 a.m. in Dept. Y so that proper notice of the motion can be given to Plaintiff.

Defendant is ordered to serve a copy of the Motion on counsel for Plaintiff and file Proof of Service. To the extent the Motion was served on counsel for Plaintiff, Defendant may file a Proof of Service.

Clerk to give notice.